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7 Q. Good afternoon Mr. Sakhai. Can you hear me? A: Ye

8 Q. My name is John Anello and I'm an attorney with the law firm of Callahan & Fusco
9 and I represent island snow services with respect to an accident I understand you
10 were involved with back on February 4th of 2021. And we're here to take your
11 deposition today which is -- I think you know what it is but it is a question and
12 answer session about the accident, your alleged injuries and your treatment for
13 those injuries so I'm going to give you some instructions and then I'm going to ask
14 you some questions about those topics and I just ask that you answer those
15 questions to the best of your ability. You were just sworn in bit court reporter
16 and we're conducting this matter virtually and we're in different locations but you
17 still have to tell the truth as though were you anywhere courtroom in front of a
18 Judge. The court reporter is taking down everything we say so just please make sure
19 all your answers are clear and verbal, no uh-huhs or shoulder shrugs or hand
20 gestures. Also please let me finish my question before you answer and I'll do the
21 same for you, I'll allow to complete your answer before I ask the next question.
22 It's very important that only one person be speaking at a time. If I ask you a
23 question and you answer it I'm going to assume that you understood the question. If
24 I ask a question and you don't know the answer please don't guess. It's perfectly
25 all right to say you don't know. However if you question calls for an estimate

1 medication or an approximation please just tell me that that's what you're doing
2 before you provide your answer. Your attorney is here you with you today and there
3 are other attorneys that represent other parties as well and you may hear one of
4 them object to one of my questions. If he objects to one of my questions please let
5 that attorney state the reason for the objection and then wait for instructions for
6 your attorney to answer before answering. Finally if you got stand up, take a
7 break, whatever you need to do just let me know. There's no reason for you to feel
8 uncomfortable so if you need a break it's fine. I don't expect this deposition to
9 be very long. Only thing I ask is that if there's a question pending please answer
10 it before we take a break. Do you understand all of those instructions? A: Yes?

11 Q. Do you have any questions? A: I don't.

12 Q. Have you ever been deposed before? A: Yes.

13 Q. And when was that? A: I don't remember the exact date.

14 Q. Was it relative to this action this case? A: Yes.

15 Q. Aside from this case have you ever been deposed before? A: No.

16 Q. Are you currently under the influence of any substances or medications that
17 would affect your ability to recall the accident, your injuries or your treatment?

18 A: No.

19 Q. Is there any reason you can't be truthful with me here today? A: No.

20 Q. Have you reviewed any documents in preparation for this deposition? A: No.

21 Q. Have you reviewed any photographs in preparation for this deposition? A: I did
22 look at photographs.

23 Q. What photographs did you look at? A: The accident photographs.

24 Q. And when you say the accident photographs what were these photographs of? A: Me
25 on the -- on the ground and the parking lot.

1 Q. And who took these photographs if you know? A: I took the picture -- I took some
2 pictures and I believe my wife.

3 Q. Do you have these photographs? Are they in your possession? A: I believe we have
4 provided them before.

5 Q. Aside interest your attorney and don't tell me any conversations you had with
6 your attorney have you discussed this case with anyone else in preparation for your
7 deposition? A: No.

8 Q. What's your date of birth and we're just put year on the record? A: 1984.

9 (Objection: MR. TAIWO: Thank you.)

10 Q. How old are you? A: 41.

11 Q. And at the time of the accident how old were you? A: 37.

12 Q. And what's your current address? A: Seven North Plandome Road.

13 Q. That in Port Washington? A: Port Washington, New York 11050.

14 Q. How long have you lived at that address? A: Just over four years now.

15 Q. And your address is that home a one family, a two family home or something else?

16 A: It's a one family.

17 Q. Do you own it, rent it or something else? A: Own it.

18 Q. Did you live at that property on February 4, 2021? A: No.

19 Q. Where did you live on February 4, 2021? A: I lived at 125 Main Street apartment
20 10 Port Washington, New York.

21 Q. And on February 4, 2021, how long were you living at that address? A: We had
22 moved in October 2020 -- 2018.

23 Q. /AUPBLD say we. Who did you live with at that time? A: My girlfriend that became
24 my wife.

25 Q. And what is her name? A: Melody.

- 1 Q. What's her last name? A: Sakhai.
- 2 Q. Do you still live with your wife I'm assuming? A: Yes.
- 3 Q. Do you live with anyone else? A: My kids.
- 4 Q. How many -- how many children do you have? A: Two kids.
- 5 Q. Are they minors? A: Yes.
- 6 Q. What are their names and can we just put initials on the record? A: M. and A..
- 7 Q. How old is M.? A: M. is a little over three years old now and A. is a little
- 8 over one year old.
- 9 Q. Have you ever gone by any other names or aliases? A: No.
- 10 Q. Where were you born? A: I was born in New York.
- 11 Q. And you're a United States citizen? A: Yes.
- 12 Q. What's your social security number and we'll just put Xs on the record? A:
- 13 XXX-XX-XXXX. (Objection: MR. TAIWO: Thank you.)
- 14 Q. Sorry, that was XX? A: XX.
- 15 Q. XX okay. And again just Xs on the record. How long have you been married to
- 16 Melody? A: A little over five years now.
- 17 Q. Prior to your marriage to Melody you were ever married before? A: No.
- 18 Q. What's your highest level education? A: I went to college.
- 19 Q. What college? A: New York University.
- 20 Q. Did you graduate? A: Yes.
- 21 Q. What year? A: 2006.
- 22 Q. And what is your degree in? A: Economics.
- 23 Q. And aside from NYU did you go to any other secondary school or graduate school?
- 24 A: No.
- 25 Q. Have you gone to any trade schools? A: No.

1 Q. Do you have a /PRO*F license by that I mean are you a licensed stock broker,
2 plumber or anything like that? A: No.

3 Q. Do you currently have a driver's license? A: Yes.

4 Q. In what state? A: New York.

5 Q. And when did you first obtain a driver's license? A: I believe I was 17.

6 Q. Has your driver's license ever been suspended or revoked? A: Not that I recall.

7 (Objection: MR. TAIWO: Objection but you can answer.)

8 Q. Were you employed at the time of the accident? A: Self-employed.

9 Q. What was your job? A: So I was both a sales person for destiny *** SPELLING
10 REQUESTED *** international realty not as a W2, as a 1099 there and I have my own
11 businesses.

12 Q. What kind of business do you have? A: Consulting and real estate.

13 Q. What type of consulting work do you do? A: Various industries.

14 Q. And is it commercial, residential, something else? A: I don't understand the
15 question.

16 Q. Like what type of industries? You said real estate is it like commercial real
17 estate you deal with or something else? A: Both commercial and residential.

18 Q. Okay. And what was your job title at destiny international? A: Sales person.

19 Q. And who was your supervisor? A: Grace lay sack *** SPELLING REQUESTED ***.

20 Q. And what was your annual salary at the time of the accident? A: Wasn't a
21 salaried position.

22 Q. Approximately how much did you make weekly at that position at destiny
23 international? A: I don't know.

24 Q. Did you file a /W*BGS claim consult of the /STKHAEPBT gave rise to this lawsuit?
25 A: No.

- 1 Q. Are you currently employed today? A: Self-employed.
- 2 Q. Request the same positions you just described? A: I'm not currently with destiny
- 3 international realty.
- 4 Q. Okay. What do you do currently? A: I just do consulting.
- 5 Q. And you work for yourself /*ES? A: Yeah.
- 6 Q. Have you ever served in theed military? A: No.
- 7 Q. Have you ever convicted of a crime? A: No.
- 8 Q. Aside from this all have you ever been involved in a personal injury lawsuit
- 9 before? A: No.
- 10 Q. Have you ever been involved in any other type of accident aside from the one
- 11 that gave rise to this lawsuit where you injured your right arm? A: No.
- 12 Q. Ever been involved in a motor vehicle accident when you injured your right arm?
- 13 A: No.
- 14 Q. Ever been involved in any other type of accident with your suffered injuries to
- 15 the same part of your body that you're alleging you are injured in this lawsuit? A:
- 16 No.
- 17 Q. What was the date of the accident that gave rise to this lawsuit? A: February 4,
- 18 2021.
- 19 Q. And do you remember what Dave /TWHAOEBG was? A: Thursday.
- 20 Q. And about what time of day did the accident happen? A: About 5:30.
- 21 Q. In the afternoon? A: Yeah.
- 22 Q. Where did the accident happen? A: In the parking lot.
- 23 Q. In the parking lot of -- A: Parking lot behind of 125 Main Street.
- 24 Q. This is where you were living at that time? A: Correct.
- 25 Q. Okay. And where specifically did you fall, was it in the parking lot, the street

- 1 or something else? A: In the parking lot.
- 2 Q. Was anyone with you? A: My wife was with me.
- 3 Q. Anyone else? A: No.
- 4 Q. Where were you going? A: I was take my wife to a doctors appointment.
- 5 Q. And had had the accident not occurred where were you -- where were you planning
- 6 on going? A: To the doctors appointment.
- 7 Q. Were you using your phone at the time of the accident? A: No.
- 8 Q. Did you have a phone at the time of the accident? A: In my pocket.
- 9 Q. Was it a cell phone, a galley *** SPELLING REQUESTED *** or something else an I
- 10 phone I mean a -- A: I phone.
- 11 Q. It was an I phone. And you'd been in this area before I'm assuming since you
- 12 lived there? A: Yes.
- 13 Q. Were you work to your car or some place else? A: I don't think I understand the
- 14 question. Can you repeat --
- 15 Q. At the time you fell were you walking to your car or were you going to catch a
- 16 bus or something else? A: Yes, walking to the car.
- 17 Q. What kind of car did you have at the time? A: X5, BMW.
- 18 Q. And your wife's doctor where was it located? A: I believe in Manhasset. I'm not
- 19 sure. I don't recall exactly.
- 20 Q. Had you gone out at all earlier that day? A: No.
- 21 Q. What time did you wake up on the morning of date date *** SPELLING REQUESTED
- 22 ***? A: I don't recall.
- 23 Q. Did you have break and a half morning? A: I don't recall.
- 24 Q. Did you have lunch? A: I don't recall.
- 25 Q. Did you have dinner? A: I don't believe so.

- 1 Q. What did you do prior to leaving your house? A: I was working. (Objection: MR.
2 TAIWO: Objection but he can answer.)
- 3 Q. Approximately how long had you been working before you left your house? A: It's
4 an estimate like eight hours.
- 5 Q. What time did you go to bed on February 3, 2021? A: I don't recall.
- 6 Q. Did you excuse me any alcohol in the 24 hours before the accident? A: No.
- 7 Q. Did you excuse me any -- any drugs or intoxicants including manner or THC
8 products in the 24 before the accident? A: No.
- 9 Q. Did you take any prescription medications on the date of the accident? A: No.
- 10 Q. Did you for get or fail to take any prescription medication you were supposed to
11 take on the date of the accident? A: No.
- 12 Q. On the date of the accident did you have any dizziness? A: No.
- 13 Q. Any difficulty walking? A: No.
- 14 Q. Any balance problems? A: No.
- 15 Q. Any vision problems? A: No.
- 16 Q. Any problems with rites *** SPELLING REQUESTED *** in your legs or knees? A: No.
- 17 Q. I see that you're wearing glasses. Did you have to wear glasses at the time of
18 the accident? A: Yes.
- 19 Q. Were you in fact wearing them at the time of the accident? A: Yes.
- 20 Q. And what are those glasses for? A: For vision.
- 21 Q. Do they help you improve your -- can you -- can you not see far, can you not see
22 close? Do you have in /SPH* other issue? A: It's for distance.
- 23 Q. What was the weather like on the date of the accident? A: It was cold.
- 24 Q. Was there any precipitation, rain, snow? A: No.
- 25 Q. Do do you know if it had rained or snowed the day before? A: I believe it was

1 two days beforehand, it had snowed two days beforehand.

2 Q. I'm sorry. It had snowed two days beforehand and three days beforehand? A: I

3 believe it was 2 and 3 days beforehand it had /STKPWHROED was there any

4 accumulation on the ground.

5 Q. /SHAOUFRPLT at the time of the accident was there any snow accumulation that you

6 noticed on the ground? A: Yes.

7 Q. How much approximately? A: I don't know.

8 Q. And /SABLGTLy how did you fall, did you /SPHR*EUP, trip or something else? A: I

9 slipped.

10 Q. Okay. Which foot slipped? A: My right foot.

11 Q. And did you fall backwards, forwards or something else? A: My legs went up in

12 the air. I fell backwards.

13 Q. Did your body turn or twist? A: No.

14 Q. What part of your body hit the ground first? A: My right hand.

15 Q. And what part of your body hit the ground second? A: I guess my /PW*UT.

16 Q. Okay. Any other parts of your body hit the ground? A: I was on the ground

17 afterwards.

18 Q. Do you recall any other parts of your body specifically hitting the ground? A: I

19 guess my feet, my legs.

20 Q. In what position did you land? A: Kind of like a seated position almost.

21 Q. Did you hit your head? A: I did not luckily.

22 Q. Did you lose consciousness at all? A: No.

23 Q. What caused you to fall? A: I slipped on black ice.

24 Q. Did you observe the ground with your fell offfell? A: Can you repeat the

25 question?

- 1 Q. Sure. Did you -- offfell were you able to observe the ground on which you fell?
- 2 26 A: Yes, I was sitting on it.
- 3 Q. And what did you observe on the ground? A: It was icy.
- 4 Q. Was there anything else? A: I don't know --
- 5 Q. Was there any salt or sodium /KHROER ride on the ground to your knowledge? A:
- 6 Nothing.
- 7 Q. Did you notice this -- did you notice this black ice before you fell? A: No.
- 8 Q. Did you notice black ice anywhere else in the parking lot before you fell? A:
- 9 No.
- 10 Q. Did you notice black ice in the parking lot on the days prior to your fall? You
- 11 had said it snowed a few days before? A: No, I didn't go out.
- 12 Q. Okay. This /THAOEUPL went out to take your wife to the doctor when was the last
- 13 time you went out before that? 27 A: I don't recall.
- 14 Q. Offfell what happened? A: What do you mean? (Objection: MR. TAIW0: Objection,
- 15 but he can answer.)
- 16 Q. Sure. Your wife was with you? A: My wife with me, yes.
- 17 Q. Did she say anything to you? A: I think I said to her that I broke my arm, I
- 18 need her to call 911.
- 19 Q. Aside from your wife did anyone see you fall? A: No.
- 20 Q. Did anyone come to your aid? A: He -- the ten ant came and the 28 ambulance came
- 21 --
- 22 Q. Aside from them did anyone else immediately after the accident come? A: Come to
- 23 help me is that the --
- 24 Q. Yes. A: No.
- 25 Q. Do you know if anyone other than your wife saw you fall? A: I don't know if

1 anybody saw me fall /PWE size my wife.

2 Q. Did you take any pictures offfell? A: Did I take any pictures?

3 Q. Yes. A: No.

4 Q. Did your wife take any pictures? A: Yes.

5 Q. What did she take pictures of? A: Me fall -- me after I had fallen on to the

6 floor in agonizing pain sitting there waiting for the ambulance.

7 Q. Did you take pictures of anyone else? A: I don't know.

8 Q. Do you know if anyone else took 29 any pictures of you or the accident scene? A:

9 I don't know.

10 Q. Were you able to get abandoning offfell? A: No.

11 Q. Did you ever dish mean obviously you got back up but did you require any

12 aassistance in getting up? A: There was -- there was ice to the point where

13 lieutenant almost slipped and fell also. The EMS person that had come almost

14 slipped on to me when the lieutenant screamed at him and told him to get down on

15 his hands and knees and crawl to me with the board. There was no chance that I

16 could get up. And they put me on to the board and put me on to the ambulance.

17 Q. So the EMTs put -- so you didn't /TKPWEUPT until the EMTs put you on to the

18 board and put you in the ambulance? A: I did not get up after I had fallen. I did

19 not get up. The EMS put me onto a board. With the lieutenant and whoever else was

20 there they put me into 30 the ambulance.

21 Q. It was dark out, correct? A: I think it was just getting dark.

22 Q. All right. So was the sun still up or was it totally dark? A: It was -- I don't

23 recall exactly.

24 Q. Were there any streetlights or anything in the area? A: I can seat /STPRA0ET

25 back of the /TPRARLT behind --

- 1 Q. Were there any lights from the back of the parking lot anything that helped I
2 /HRAOUPPL anyway the area? A: There are lights there. They were not on.
- 3 Q. Require to the accident had you ever made any complaints to the -- to the
4 building or anyone associated with the 31 building about snow or ice in the parking
5 lot? A: No.
- 6 Q. Did you ever make any complaints about snow or ice anywhere else on the -- on
7 the facility? A: No.
- 8 Q. Are you aware of any -- any prior accidents involving snow or ice in that
9 parking lot until particular? A: No.
- 10 Q. What were you wearing on the date of the accident? A: What was the question?
- 11 Q. What were you wearing on the date of the accident? Did you have a jacket on? A:
12 It was cold. I had jeans, jacket and snow boots.
- 13 Q. What kind of -- what kind of snow boots were they? A: The brand is that what
14 you're asking?
- 15 Q. Yeah sure. The brand? A: I believe it's Columbia. 32
- 16 Q. Were they actually snow boots or work boots or something else? A: Snow boots.
- 17 Q. Do you still have those snow boots? A: Yes.
- 18 Q. When did you purchase those /STPH0EF boots if you recall? A: I don't recall.
- 19 Q. Were you carrying anything at the time of the accident? A: No.
- 20 Q. Did any part of your body come into contact with anything other than the ground
21 as a result of this slip? A: Can you repeat the question?
- 22 Q. Sure. Did your -- did any part of your body as a result of this slip come into
23 contact with anything else besides the ground, a car, anything else? A: No.
- 24 Q. Did you feel pain immediately after the impact? A: Yes a ton of pain and I was
25 sitting there waiting for the ambulance. 33 I asked my wife for water because I

- 1 just needed to have some water. I was in shock.
- 2 Q. Where did you feel this pain? A: In my arm.
- 3 Q. In your right arm? A: My right arm.
- 4 Q. Did you feel pain anywhere else? A: No.
- 5 Q. If you had to describe this pain in your right arm on a scale from 1 to 10,
- 6 being the worst, one being the best how would you describe it? A: Ten. From the
- 7 elbow to the shoulder was a complete ten.
- 8 Q. Were you bleeding from anywhere in your body after the impact? A: No.
- 9 Q. Was there any swelling anywhere on your body after the -- after the fall? A: I
- 10 don't recall.
- 11 Q. Did you have any other visual injuries immediately after the impact anywhere
- 12 else on your body? A: Can you explain the question again? (Objection: MR. TAIW0:
- 13 Objection. He can 34 answer if he understands.)
- 14 Q. Sure. Aside interest your right ample which you described did you have any other
- 15 visual injuries, bleeding, bruising, swelling anywhere else on your body? A: I was
- 16 wearing a jacket. You couldn't even see my arm that it was injured.
- 17 Q. Were you aware of any other -- any other injuries to any other parts of your
- 18 body immediately after the fall? A: No.
- 19 Q. Who /TKURB said an ambulance arrived. Who called the ambulance? A: My wife
- 20 called 911.
- 21 Q. And approximately how long did it take for 911 to arrive after she called? A: I
- 22 believe lieutenant showed up within five minutes or so.
- 23 Q. And what police department did that lieutenant belong to? A: I believe Port
- 24 Washington. 35
- 25 Q. And how long after -- after that did the ambulance arrive? A: Couple minutes.

- 1 Q. So from the time of the call until the time the ambulance arrived about about
2 ten minutes went by is that fair to say? A: It's probably a good estimate.
- 3 Q. Approximately how long were you on the ground after you fell? A: Approximately
4 the ten minutes that I was waiting.
- 5 Q. Did you speak to the EMTs when they arrived? A: Sorry.
- 6 Q. Okay. What did you say to them? A: Told them I slipped and I fell and I believe
7 I broke my arm.
- 8 Q. And what did they -- what did at the say to you? A: They told me they're going
9 to take me to the hospital. 36
- 10 Q. Did they treat you at the scene for anything? A: I don't recall.
- 11 Q. Did they treat you in the ambulance for anything? A: I don't recall.
- 12 Q. What hospital did they take you to? A: North well in Manhasset.
- 13 Q. Did you ask to go to that hospital or that's just the hospital they took you to?
14 A: I don't recall.
- 15 Q. How long did it take for them to get out to hospital? A: As an estimate maybe
16 five minutes or so.
- 17 Q. Other than the EMTs did anyone else ride in the ambulance with you? A: No one
18 sells allowed in the ambulance because of COVID at the time.
- 19 Q. Did you report your slip and fall to the -- any property managers or owners of
20 the building? A: I believe that we -- I had 37 looked for the contact information
21 for the building manager and the super had come out. He had seen me and we told the
22 owner of the unit.
- 23 Q. Who is is the super? A: Super is jack.
- 24 Q. Do you know jack's last name? A: I don't.
- 25 Q. How long after you fell did jack come out? A: I don't know.

- 1 Q. What did he say to you? A: I don't recall.
- 2 Q. Did he do anything? A: I don't recall.
- 3 Q. And when did you report this accident to the property manager? A: I don't
- 4 recall.
- 5 Q. Did you fill out a form or anything like that? A: I don't believe so. I don't
- 6 recall though.
- 7 Q. Who specifically did you -- did you report it to, do you know his or her name?
- 8 38 A: I don't. Don't recall.
- 9 Q. Aside from jack did anyone else approach you at the accident scene? A: The
- 10 lieutenant the EMS, jack was there. He didn't approach me. His wife was there too.
- 11 Q. And you said you went to north -- the EMTs took you to north shore hospital? A:
- 12 North well.
- 13 Q. North well? A: Yeah.
- 14 Q. And it took about five /TPHOEUPBS /TKWET there? A: An estimate would be 5,
- 15 minutes or so something like that.
- 16 Q. Do you know what time you arrived at north well hospital? A: I don't recall the
- 17 exact time.
- 18 Q. And did they take you to the emergency room or some place else? A: Emergency
- 19 room.
- 20 Q. And how long were you in the emergency room before you met with a health care
- 21 provider? 39 A: I don't recall.
- 22 Q. And when you first met with a health care provider was it a doctor a nurse or
- 23 someone else? A: I don't recall.
- 24 Q. Did you see a doctor at the hospital? A: Yes.
- 25 Q. Do you recall the name of the doctor? A: I don't.

1 Q. What -- what did you tell the doctor? What did you complain of? A: I complained
2 of the pain in my arm, in elbow and shoulder and that I had slipped on ice and
3 broke my arm.

4 Q. And did the doctor examine you? A: Yes.

5 Q. Did he diagnosis you with any injuries or conditions? A: They took x-rays and
6 then told me that my arm was broken and it was -- the way he described it is it was
7 like /STPRAEUT across where it was like two water bottle openings trying to line up
8 40 together and they would manually happen to put it back as best as possible
9 together but that I would need surgery to be able to fix the broken arm.

10 Q. And who took the x-rays? A: I don't know.

11 Q. The x-rays were done at the hospital though? A: Yes.

12 Q. And you reviewed the x-rays with a doctor before you left? A: I don't recall. I
13 believe so.

14 Q. Approximately how long were you in the emergency room? A: Approximately seven
15 hours.

16 Q. Where did you go when you left the hospital? A: Home.

17 Q. How did you get home? A: I don't recall.

18 Q. You say you had x-rays at the hospital /-FRPLT besides your right arm did they
19 x-ray any or parts of your body? A: I don't recall.

20 Q. Did they do any other diagnostic 41 testing like MRIs or CT scans? A: No.

21 Q. Are you familiar with a doctor arrest /KWRAL gold man *** SPELLING REQUESTED
22 ***? A: Yes.

23 Q. Okay. How are you familiar with him? A: He did the surgery to put my arm back
24 together.

25 Q. And who referred to you Dr. Goldman? A: I found him online.

- 1 Q. Is he the doctor you treated with at the hospital? A: I don't think so.
- 2 Q. When was your first visit with Dr. Goldman? A: The week after the accident.
- 3 Q. So approximately February 10th, February 11th around there? A: I believe so.
- 4 Q. Where is Dr. Goldman's office located? A: I believe it's Manhasset also. 42
- 5 Q. Approximately how far from your home at the time was Dr. Goldman's office? A:
- 6 About the same 5 or 10 minutes, to 10 minutes.
- 7 Q. And on your first visit there who examined you? A: Dr. Goldman.
- 8 Q. Did he diagnose you with any injuries or conditions? A: He told me my arm was
- 9 broken and I need surgery.
- 10 Q. Can you describe that initial examination with Dr. Goldman? A: What do you mean?
- 11 Q. Did he go over any x-rays with you, derecommend any MRIs, anything like that? A:
- 12 Yeah he showed me x-ray and showed me that my arm was broken and told me that I
- 13 was going to need a surgery to be able to put it back together.
- 14 Q. What surgery did he recommend that you made? A: I believe it was open reduction
- 15 where he would need to put in a plate and 43 screws and screw it all back together
- 16 because my arm was in totally pulled apart /PWHRAEUFBG so but the bones were not
- 17 together.
- 18 Q. Did -- derecommend anything other than /STOURPBLG treat your injuries? A: There
- 19 was nothing else that I could do.
- 20 Q. Did he perform this surgery on your arm -- on your right arm? A: De.
- 21 Q. When did you perform that surgery? A: I believe it was February /#12K3W4R5*9 and
- 22 where did he perform that surgery.
- 23 Q. And after the -- after the surgery how long were you hospitalized? A: I went
- 24 home that day.
- 25 Q. Approximately how long did the surgery take? A: He told me that the surgery was

1 going to take approximately two hours. I 44 believe it was two hours and change.

2 Q. And approximately how long you were -- were you in the hospital from start to
3 finish for the surgery? A: I don't recall.

4 Q. It was all done in a day. You weren't -- you didn't stay overnight? A: Did I not
5 stay overnight.

6 Q. Did the surgery alleviate the pain this your right arm? A: No.

7 Q. Do you still have pain this your right arm? A: I still have pain sitting here
8 right now.

9 Q. Is it -- is it better or worse since the surgery? A: The pain at the time of the
10 surgery was a ten. I could -- I was screaming every time I would get into a car and
11 move so I would say it's better since the surgery.

12 Q. Prior to the accident did you have any -- any other injuries -- any injuries to
13 your right arm? 45 A: No.

14 Q. Did you have any surgeons before the -- before the accident? A: No.

15 Q. Aside from the surgery to your right arm have you had any other surgeries for
16 any other parts of your body for injuries you alleged to have sustained in this
17 accident? A: Can you repeat the question?

18 Q. Sure. Aside from -- aside from the surgery to your arm that you just described
19 have you had any other surgeries related to injuries you claim to have sustained
20 during this accident? A: No. The doctors told me that I followed up with tolled me
21 that I likely need a second surgery and I'm very scared to do that.

22 Q. What kind of surgery did they say you need? A: One told me I need arrest throw
23 /SKOPic surgery in the right shouldersm the others told me that I likely need other
24 surgeries that are even more 46 intensive but I'm scared to do any of that.

25 Q. What doctor told you that you need right shoulder surgery? A: I saw three

1 doctors after Dr. Goldman and all three of them told me that I likely need surgery.

2 Q. What are the names of the three doctors that you saw after the surgery? A: I saw

3 Dr. Tuck man *** SPELLING REQUESTED *** I saw /TKHR-FPLT go /HRA Doe and I saw Dr.

4 Degree *** SPELLING REQUESTED ***.

5 Q. And who is that third doctor? A: District attorneyingly *** SPELLING REQUESTED

6 ***.

7 Q. District attorneyingly. Do you know Dr. Item man's first name? A: Don't.

8 Q. And who referred to you Dr. Item man? A: I wasn't referred to him.

9 Q. How did you come to learn of him? A: He works in the same office as 47 Dr.

10 /PHAOUS at that if a *** SPELLING REQUESTED ***.

11 Q. Who is Dr. /RAO*US *** SPELLING REQUESTED ***? A: /RAO*US was the first doctor

12 that I saw after the /STKPWHREPBT how did you learn about Dr. /RAO*US.

13 Q. Sand Dr. /T*UPL /TK*EL also an orthopedic doctor? A: Yes.

14 Q. Do you know /WHAЕ specializes in? A: I believe in the shoulder.

15 Q. And this other doctor is it Dr. /TKPW0*L *** SPELLING REQUESTED *** you said? A:

16 /TKPW0*L.

17 Q. /TKPW0*L. Do you know his first name? A: I don't.

18 Q. And how did you learn of /TK0*L *** SPELLING REQUESTED ***? A: I had seen

19 somebody who looked 48 like they had a shoulder surgery in my daughter's office,

20 doctor's office and I asked him, you know, did you have shoulder surgery, he said

21 yes and he told meet doctor's name.

22 Q. Where is /TK0*L's office located? A: In Manhattan HSS.

23 Q. How did you know he had shoulder surgery? A: It looked like he could have been

24 and I think he had writing up on his shoulder.

25 Q. Writing on his shoulder? A: It looked like he had marks on his shoulder.

1 Q. Oh. And when was your first treatment with or first visit with /TK0*L? A: I
2 don't recall.

3 Q. Do you know what kind of doctor /TK0*L is? 49 A: He's one of the top doctors in
4 HSS for shoulders --

5 Q. And did he -- have you had /PH*ULT visits with him or it was just that one
6 visit? A: I don't recall.

7 Q. Dr. /T*UPL or /TK0*L did they recommend you undergo any MRIs on your shoulder or
8 any other MRIs any other part of your body? A: Yes.

9 Q. Did you in fact undergo MRIs on your right shoulder? A: Did I MRIs for my
10 shoulder and my elbow.

11 Q. When did you do the MRI on your shoulder? A: After Dr. Tuckman told me to.

12 Q. When was that? A: I don't recall the exact date.

13 Q. Where did you get this MRI? A: It was Zwanger & Pesiri.

14 Q. Where is that? What was that? A: Zwanger & Pesiri.

15 Q. Is that a doctor's name or a 50 name of the -- is that the name of the place
16 where they did it? A: That's the name of the place where they did it at.

17 Q. Where is that located? A: I don't recall.

18 Q. Is that where Dr. Tuckman told you to go or? A: Don't -- I don't recall.

19 Q. Where is that place located with respect or where is it located? A: I believe
20 plain view. I'm not sure.

21 Q. And that's in Long Island? A: Yes.

22 Q. How far is it from your home? A: I believe 20 minutes.

23 Q. All right. And how many times did you treat with Dr. Tuckman or visit with Dr.
24 Tuckman? A: I don't recall exactly.

25 Q. De/SRA0*UT MRI results with you? A: Yes.

1 Q. Oh I'm sorry just back up a little bit. Did you get your elbow MRIed 51 the same
2 /TKHAEU got your -- A: No.

3 Q. Where did you get your elbow MRIed? A: It was after.

4 Q. Was it at the same facility? A: No.

5 Q. Where did you get your elbow MRIed? A: In the office I believe downstairs from
6 where Dr. Tuckman's office is.

7 Q. Somewhere Dr. Tuckman's office? A: In Manhasset.

8 Q. Do you know the name of that facility or -- A: I don't recall.

9 Q. Aside from the -- your elbow and your shoulder did you have any other body parts
10 MRIed since this -- since this accident? A: No.

11 Q. And you said -- you mentioned a third doctor doctor district attorneyingly /SWAS
12 it? 52 A: Yeah.

13 Q. How did you come to learn of /TKA*G *** SPELLING REQUESTED ***? A: I found him
14 online.

15 Q. And where is his office located? A: I don't recall.

16 Q. When did you first visit with him? A: I don't recall exact date.

17 Q. What can you described of doctor is he? A: He's also an orthopedic specialist.

18 Q. Specializing in the shoulder or /SPH* other body part? A: I don't recall.

19 Q. Did of these doctors diagnose you with any injury or condition with respect to
20 your right shoulder? A: They told me that I have weakness and that the -- it likely
21 needs surgery to be able to bring pain down and to get full range of motion
22 hopefully back.

23 Q. And did call four of these 53 doctors recommend you have surgery on your right
24 shoulder? A: Yes.

25 Q. Did any of them recommend anything other than surgery? A: /TK0*L told me I can

1 take shots and try that.

2 Q. Did you take shots? A: No.

3 Q. Did they recommend physical therapy? A: I had done physical therapy after Dr.

4 Goldman had told me to and I did that for almost two years.

5 Q. When -- when did you start physical therapy? A: I believe it was immediately

6 after my surgery.

7 Q. So that was about 2021? A: Yeah.

8 Q. Where did you -- where did you do physical therapy? A: Stars.

9 Q. Where is that? A: /PHA*PBS *** SPELLING REQUESTED 54 ***.

10 Q. And how did you learn about that place? A: My wife had gone to them.

11 Q. Okay. And what kind of -- what parts of your body did you work on at physical

12 therapy? A: My right arm and shoulder and elbow.

13 Q. Did -- did the physical therapy help alleviate your pain at all? A: They -- can

14 you repeat the question?

15 Q. Sure. Did the physical therapy help alleviate your pain? A: It helped me live

16 with my arm that wasn't working.

17 Q. Yes. A: I was not able to move my arm at all when I walked in. I couldn't dish

18 could barely do anything. When I walked out I was still able to at least be able to

19 pick up a bottle of water.

20 Q. So the physical therapy helped? A: Yes.

21 Q. And not only with your shoulder it helped with your arm as well on your elbow?

22 A: I couldn't move anything when I walked into that office.

23 Q. Okay. When was the last time you went for physical therapy? A: I don't recall.

24 Q. Do you currently have any surgeries scheduled relative to the injuries you

25 alleged to have sustained in the accident? A: No but it's been a consideration to

1 go for the surgery because of the /TPHAEUPB I'm in and at times it's gotten really
2 bad to the point where I feel I 56 have no choice but to go for surgery. I've about
3 just been putting it off because of the /TPHAEUBGT have two young kids and I don't
4 want to take the risk a drop wrist or having to go /TKPWEB through another two
5 years of recovery and ending up in the same position without being able to help my
6 family throughout the time.

7 Q. And that's a surgery on your right shoulder you're considering? A: Yes.

8 Q. Are you considering any other surgeries? A: No.

9 Q. Are you currently treating for any of the injuries that you alleged to have
10 sustained in this accident? A: No. Treating way doctor is that what you mean?

11 Q. /KWREFPLT are you currently treating with any doctor whatsoever for any injuries
12 you alleged to have sustained in this accident? A: No.

13 Q. Is there anything that you could 57 do before the accident that you cannot do
14 now? A: Many things.

15 Q. Okay like what for instance? A: Playing /SPORTSZ, being able to pick things up,
16 being able to lift /WAETSZ, being able to put furniture together, being able to
17 change the light bulbs easily. Being able to shave easily. Being able to brush my
18 teeth easily. There's pain involved in all the things that I have to do now on a
19 daily basis. Being able to pick up my kids is painful. It's -- I have to hold my
20 kids /WHEB I can with my left arm which I'm not that comfortable with. At times
21 when I have to switch to the right arm for a quick second it's very uncomfortable
22 and does result in further pain.

23 Q. You mentioned -- you mentioned sports. Before the accident did you -- did you
24 play any sports? A: I would play sports, I would swim, I would do thing to try to
25 be active, I would go to the gym. A lot of 58 these things I /0 can't do anymore.

1 Q. What sports did you play? A: I would play basketball. I would swim, I would play
2 tennis.

3 Q. And you're not able to do any of those things anymore? A: I'm able to do things
4 with a large amount of pain so it's not that, you know, my arm doesn't move at all.
5 My arm thankfully does move and I can could thing but it either causes a ton of
6 pain at the time or thereafter also.

7 Q. Where did you -- you said you would play tennis. Where would you play tennis
8 before the accident? A: I would play socially.

9 Q. And all these /SPOURTS said were you in any lesion or did you just play with
10 friends or socially -- A: No play with friends socially.

11 Q. Okay. And you're no longer able to -- are you able to play any sports now? A: I
12 can't play a game of basketball.

13 Q. Can you play tennis? 59 A: No.

14 Q. Do you have any social media accounts? A: I do.

15 Q. Do you have /TP*B? A: Yes.

16 Q. Do you have /*EUG? A: Yes.

17 Q. Do you have Twitter or X? A: Yes.

18 Q. Do you have linked in? A: Yes.

19 Q. Do you have Snapchat? A: I don't recall.

20 Q. Do you have TikTok? A: No.

21 Q. Do you have any other social media accounts on any other platforms that I
22 haven't mentioned? A: I don't recall.

23 Q. Have you ever posted anything on social media regarding the accident? A: I
24 posted one picture.

25 Q. And which picture is that? A: Picture of my arm wrapped up 60 after the

- 1 accident.
- 2 Q. And who /THA0BG picture? A: My wife.
- 3 Q. When did you post it? A: Couple of days after the accident.
- 4 Q. Any other posts? A: No.
- 5 Q. /TPH*EU other -- any other posts about your injuries? A: No.
- 6 Q. In the two years since the accident or however long it's been since the
- 7 accident, almost four years now, have you traveled outside of the United States? A:
- 8 No.
- 9 Q. Have you traveled outside of the State of New York? A: Yes.
- 10 Q. Where have you gone? A: I believe New York, Florida and Hawaii. Sorry. New
- 11 Jersey.
- 12 Q. Oh okay. When did you go to Florida? A: I don't recall. 61
- 13 Q. How many times have you gone to Florida? A: I think once.
- 14 Q. Where did you go in Florida? A: I don't recall.
- 15 Q. Was it for vacation, business? A: I believe to go see family in my a/PHEU.
- 16 Q. And how did you get to /PHA0*EUPL *** SPELLING REQUESTED ***? A: Via plane.
- 17 Q. And how did you get back? A: Plane.
- 18 Q. How long were you there? A: I don't recall.
- 19 Q. Where did -- where did you stay? A: (Pause.) I stayed in a hotel, know /PWA0U
- 20 hotel.
- 21 Q. And that's in /PHA0*EUPL *** SPELLING REQUESTED ***? A: Yeah.
- 22 Q. You said you went to Hawaii as well. A: Yeah.
- 23 Q. When was that? 62 A: I don't recall.
- 24 Q. How long were you in Hawaii for? A: Couple of days.
- 25 Q. And where -- where specifically did you go in Hawaii? A: /PHAU which.

1 Q. And was this for a vacation, business or something sells? A: Vacation ***

2 SPELLING REQUESTED ***.

3 Q. And where did you say in /PHAU which? A: Hotel.

4 Q. What was the name of the hotel? A: I don't recall.

5 Q. How did you get back from Hawaii? A: Plane.

6 Q. And these flights Florida and Hawaii are these commercial flights you took or

7 private flights or something else? A: Commercial.

8 Q. The treatments in the surgery that you describe today who paid for it? A: My

9 insurance company united health care.

10 Q. And you had insurance at the time of the accident? A: Yes.

11 Q. And how did you -- what kind of plan did you have? A: I don't know.

12 Q. Did you obtain it through your employment or some other way? A: It's through my

13 wife's employment.

14 Q. Oh okay. And where does your 64 wife work? A: She works Hadasa.

15 Q. Hadasa? A: Hadasa it's called.

16 Q. What kind of business or establishment is that? A: It's a nonfor profit that

17 works with a hospital.

18 Q. Do you have any other outstanding medical bills as a result of your treatment?

19 A: I don't believe so.

20 Q. Are you aware of any -- any liens that any health care provider or medical

21 company has with /TROPT your treatment? A: I don't know.

22 Q. I don't have anything further at this time? A: Yeah so I don't believe Florida

23 was after the accident. It was California and Hawaii for my honey /PHOPB and I went

24 to Canada once within the last year I believe it was. (Objection: MR. TAIW0: Can I

25 -- can we just take a quick break. MR. ANELLO: Sure. MR. TAIW0: Just a couple of

1 minutes I'm not going to go anywhere. (Whereupon, an off-the-record 65 discussion
2 was held.) MR. TAIWO: Over my objection I'm going to let my client answer the
3 question about legal funding so yeah and my -- I believe he also wants to correct
4 his previous answers about where he went to for vacation.)

5 Q. Where did you go in Canada? A: Montreal.

6 Q. And how did you get there? A: I took a plane also.

7 Q. How long were you in Canada or in Montreal? A: Couple of days few days.

8 Q. Was it for business, vacation or something else? A: Vacation.

9 Q. Okay. And you said you went to -- was it California to Hawaii one trip? 66 A:

10 Went to California, stayed there I think for a couple of days, went to Hawaii and
11 then back to California to New York.

12 Q. Okay. And that was for your honeymoon? A: Yes.

13 Q. And do you recall when exactly that was? A: I believe the end of 2021.

14 Q. Or treatment funding? A: No.

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